

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 22-31

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TPG PRESSURE, INC.,  
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and  
OMNI LOGISTICS LLC,  
RESPONDENTS.

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**COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT**

Pursuant to 46 C.F.R. § 502.5(b), Complainant TPG Pressure, Inc. (“**TPG**”), through its undersigned counsel, hereby moves for an order for confidential treatment of the Appendixes filed in connection with TPG’s Proposed Findings of Fact and Appendix (the “**Proposed Findings of Fact**”), filed simultaneously herewith. In support of the motion, TPG states as follows:

1. On September 8, 2023, Judge Wirth issued the *Order Entering Protective Order* (the “**Order**”) granting the parties’ *Joint Motion for Entry of Confidentiality Stipulation and Proposed Protective Order*, filed on September 6, 2023.
2. The Order defines “Confidential Information” to include “information ... that was previously disclosed to the Receiving Party in violation of a known obligation to maintain confidentiality or restrict disclosure.” Order at 1.
3. The Order states, “Documents containing Confidential Information as defined in Paragraphs 1, 2, and 3 shall be marked with the word “CONFIDENTIAL” or

“CONFIDENTIAL OCEO” on each page of that document that contains such information.”

Order at 18.

4. The Order also states:

Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within ten (10) days after receipt of the official deposition transcript or deposition copy.

5. Respondents produced documents, including email chains, bates numbered EPIC\_0000001 through EPIC\_0061269. These documents were produced during discovery, marked “CONFIDENTIAL,” and for attorney eyes only.

6. Additionally, TPG has produced documents bates numbered FMC\_C00000001 – FMC\_C00047402. These documents were produced during discovery, and not marked “CONFIDENTIAL” and for attorney eyes only. Some of these documents are the same documents Respondents produced as CONFIDENTIAL.

7. Further, a portion of the transcript of the deposition of Mr. Manzanares take September 28, 2023, was designated as confidential on the record during the deposition.

8. The supporting documents filed in connection with TPG’s Proposed Findings of Fact and Appendix that contain bates numbers from the bates sequences listed above were procedurally designated as confidential pursuant to the Order.

9. TPG is seeking confidential treatment under 46 C.F.R. § 502.5 for the supporting documents filed in connection with TPG’s Proposed Findings of Fact and Appendix.

WHEREFORE, TPG respectfully requests that the Commission grant this motion and that it be given leave to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2), and for all other relief deemed fair and proper.

Respectfully submitted February 22, 2024 FISHERBROYLES LLP

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*Counsel for Complainant TPG  
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## CERTIFICATE OF SERVICE

I certify that on February 22, 2024, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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